BONFACE KARORO
versus
ALICK MUTHONGA
and
THE MINISTER OF LANDS, AGRICULTURE,
FISHERIES, WATER AND RURAL DEVELOPMENT

HIGH COURT OF ZIMBABWE
BACHI MZAWAZI J
Chinhoyi,16 June 10 July 2026

N. Mugiya, for the Applicant
K.T. Mukanganwi. for the 1st respondent
C. Chitekuteku, for the 2nd respondent

Opposed Court Applications

BACHI MZAWAZI J:

Summarised background

Two cases, HCCR1/26 and HCCR56/26, involving the same parties and subject matter but different causes of action have been consolidated by consent through a court application. I will start with the judgment of the first matter to be set down, the eviction case, even though arguments for the second matter were heard first. I must hasten to state that on the basis of the cause of action for *rei vindicatio,* this court has jurisdiction to make a determination in this case on the basis of the evidence within the four corners of the record.

Briefly, the applicant and the first respondent are holders of two offer letters over the same piece of land, namely, subdivision *4 Nswala Farm, Zvimba.* These were issued by the second respondent as an administrative functionary and the lands authority, at different intervals. The first offer letter to be issued was that of the first respondent on 29 June 2011. Applicant obtained his on 29 July 2013. It is also on record that on 13 September 2013, a letter of withdrawal of the first offer letter was generated by the second respondent, purportedly withdrawing or terminating the first offer letter.

The point in limine, on the dirty hands' principle raised in this first rung of the consolidated matters has been dismissed, as lacking merit. Further, the point of law, of material dispute of facts, raised much later in the hearing, is again of no moment. The court has taken a robust approach and is convinced this second issue is resolvable on the evidence and papers filed of record.[1]

In this case, on the faith of his offer letter issued on 29 July 2013, by the second respondent, applicant is seeking the eviction of the first respondent from, Subdivision *4 Nswala Farm, Zvimba*. He claims that, in terms of the law as spelt out in *Commercial Farmers Union and 10 Others v The Minister of Lands and Rural Resettlement and 7 Others* SC31/10, as a holder of an offer letter, he is bestowed with ownership rights over the said specified gazetted land. He is also bequeathed with the *locus standi* to sue for the eviction of any illegal occupier of land allocated to him or her in terms of the offer letter.

From applicant's stand point, the moment the withdrawal letter, of the 13th of September was issued, accompanied by other official documents, which are of no significance to the outcome of this case, the applicant's rights of occupation ceased. As such from that date onwards, the applicants are illegal settlers in violation of Statute. [2] Applicant's stance is supported by the second respondent who further submits that, the withdrawal letter is protected by the presumption of regularity and validity of official acts or processes until challenged. [3]

On the other hand, the gravamen of the first respondent's defence is that the applicant cannot be the owner of the farm in dispute as his offer letter was issued during the lifespan of his own. Further, that the withdrawal letter was both wrongly and unprocedurally issued.

[1] *Supa Plant Investments (Pvt) Ltd v Chidavaenzi* 2009 (2) ZLR 132 (H) at 136F-G, Masukusa v National Foods Ltd & Another 1983 (1) ZLR 232 (S) at 235A Zimbabwe Bonded Fibreglass v Peech 1987 (2) ZLR 338 (S) at 339C-D;
[2] S3 of Gazetted lands Act (Consequential Provisions) [Chapter 20:28]
[3] *Tendai Savanhu v Hwange Colliery Company SC08-15* …….

The law

The law on *rei vindicatio* is well traversed.[4] The litigant has to establish that he is the owner and that another person is in possession of his property without his consent to his deprivation.[5]The famous caption in *Chetty v Naidoo* 1974 (3) SA 13 (A) at 20B-D, by Jansen JA is,

> It is inherent in the nature of ownership that possession of the *res* should normally be with the owner, and it follows that no other person may withhold it from the owner unless he is vested with some right enforceable against the owner (e.g. a right of retention or a contractual right). The owner, in instituting a *rei vindicatio*, need, therefore, do no more than allege and prove that he is the owner and the defendant is holding the *res* - the onus being on the defendant to allege and establish any right to continue to hold against the owner.

There also available defences to the eviction suit. In *Alspite Investments (Private) Limited vs Tendayi Westerhoff HH99/09* the court observed that,

> There are primarily two defences to the *rei vindicatio*, each aimed at destroying each of the two essential elements of the action. The first one seeks to destroy the claim of ownership completely by denying that the plaintiff is the owner of the property in question or seeks to diminish his rights in the property by admitting his or her ownership but by alleging that the plaintiff has parted under some recognized law, with the right to exclusive possession of the property. The second defence of course is to deny possession of the property at the time the action is brought or the claim is instituted.

Issues

The evident sole issue is, whether or not the applicant can be said to have rights of ownership entitling him to evict the first respondent?

Analysis

We cannot turn a blind eye or run away from the fact that there are three contentious documents, as is apparent. There is an offer letter issued in 2011 to the first respondent by the second respondent. Another offer letter was issued on 29 July 2013. The only evidence of the termination of the first offer letter is the notice of withdrawal dated the 13 September 2013. There is an obvious live issue easily discernible from the sequence of dates in the

[4]*Chetty v Naidoo* 1974 (3) SA 13 (A

[5] See *Sibanda v The Church of Christ* 1994 (1) ZLR 74 (SC); *Musanhi v Mt Darwin Rushinga Cooperative Union* 1997 (1) ZLR 120 (SC); *Mashave v Standard Bank of South Africa Ltd* 1998 (1) ZLR 436 (S); *Jolly v A Shannon & Anor* 1998 (1) ZLR 78 (HC); and *Stanbic Finance Zimbabwe Ltd v Chivungwa* 1999 (1) ZLR 262 (HC).)

documents succeeding that issued in 2011. This is effortlessly determinable from the evidence of the three documents before this court. [6]

From that perspective, in the spirit of finality to litigation, given the numerous protracted legal disputes between the parties over the same subject matter, I will analyse the offer letter that the applicant claims, gives him rights over Subdivision *4 Nswala Farm, Zvimba*

It is not in dispute that, the applicant herein was given his offer letter on 29 July 2013. The second respondent neither denies issuing the second offer letter before retracting the first one. Nor does it deny that it issued a letter of withdrawal, withdrawing the first respondent herein 's offer letter of 2011, after it already issued the second offer letter. The second respondent is even adamant that that letter of withdrawal is valid until challenged thereby buttressing its existence.

A closer look at the letter of withdrawal shows that it was issued on 13 September 2013. In juxta positioning the applicant's offer letter of 29 July 2013, against the letter withdrawing the first respondent's offer letter dated 13 September 2013, it is clear that the issuance of applicant's offer letter preceded the withdrawal of the first offer letter. In simple terms, without going into any procedural issues or logic behind such issuance, what is before the court is a glaring fact that the applicant's letter was issued during the existence of the first respondent's offer letter.

In that respect, as borne by the evidence, the issuance of the second offer letter before the withdrawal of the first, was a legal nullity. As such no rights flow from a legal nullity. The flawed applicant's offer letter does not give him rights of ownership. Let alone the right to evict the second respondent under such circumstances.

In the words of KORSAH JA in *Muchakata v Nertherburn Mine* [7] .

''If the order was *void ab in initio* it was void at all times and for all purposes. It does not matter when and by whom the issue of its validity is raised; nothing can depend on it. As Lord Denning MR so exquisitely put it in *MacFoy v United Africa Co* Ltd (1961) 3 All ER 1169 at 1172 I

[6] *Van Niekerk v The Master of the High Court*,1998 (1) ZLR 418, 423, B-C*, Zimbabwe Bonded Fibreglass* (*Pvt)LTD v Peech* 1987(2) ZLR 538(S).
[7] 1996(2) ZLR 153(S),157 B-C

'If an act is void then it is in law a nullity. It is not only bad but incurably bad … and every proceeding which is founded on it is also bad and incurably bad. You cannot put something on nothing and expect it to stay there. It will collapse''.[8]

The second respondent's effort to sanitize its mistake and its letter of withdrawal issued after the double allocation by hiding behind the presumption of validity of official documents fails to gain traction. It does not hold.

Whilst the second respondent has a prerogative to issue or withdraw its own process, it does so within the parameters of the law. Good corporate governance demands accountability, transparency and responsibility, which is a constitutional mandate, from administrative authorities. They must be duty bound to acknowledge their mistakes and put into place corrective measures. This is evident from the position taken by the second respondent in this and similar cases. If these quasi-judicial bodies were playing their part there will be less judicial intervention, reduced litigation and costs.

I am, therefore, not persuaded by *Mr. Chitekuteku*'s argument that the letter of withdrawal is protected by the presumption of validity until challenged. Indeed, the presumption is rebutted when challenged. The challenge of that offer letter is the main ingredient of both applications placed before this court. [9]

The first respondent's defence, challenging the applicant's ownership is therefore sound. As such, the applicant's application for eviction cannot succeed. No strong basis has been laid for punitive costs

Disposition

I proceed to make the following findings**:**

1. The validity of the applicant's offer letter is questionable given that in a double allocation scenario, the principle of the first in time prevails.
2. The applicant's offer letter was issued well after the issuance of the first respondent's and before its withdrawal. In fact, during the lifespan of the first offer letter.
3. The applicant therefore, has no greater rights or title over the first respondent empowering him to utilize or be shielded by the remedy of *rei vindicatio*

[8] *Folly Cornishe (Private) Limited and Anor v Shingirayi Tapomwa N.*O and Ors SC26/14
[9] *Nyasha Chikafu Vs Dodhill (Private) Limited and Simon Keevil and Another SC28/09*

Accordingly,

It is ordered, that

The application for eviction is dismissed with costs.

Case, HCCR56/26

Moving onto case, HCCR56/26, applicant is seeking the validation of its offer letter through a declaration of validity. Applicant argues that, he was the first in time in a double allocation scenario. He contends that the notice of withdrawal was both wrongly and irregularly issued. It is their argument that, the controversial document was generated way after the second allocation of the same piece of property had been done. Further, it was done in violation of the Administrative Justice Act[10], in that they were neither given notice nor right of audience to make representations. In addition, the letter of withdrawal was never brought to their attention or served on them. They only learnt of its existence through the second respondent in one of the numerous lawsuits mounted after the alleged double allocation of the said farm.

In opposition, the respondents raised several points in limine amongst them, one on the appropriateness of this application for a declarator. From the arguments advanced by the parties, I am of the considered view that this point is dispositive of the first matter at hand. I will proceed to deal with the dispositive preliminary point. I do so on the authority of the case of *Gwaradzimba N.0 v Gurta. A. G*[11]which is the same stance taken most recently by KABASA J, in the case of *Mahlangu & Ors v Mahlangu and Ors*. [12]

Dispositive Preliminary point?

Is an application for a declarator the right course of action before this court*?*

Mr. Mugiya and *Mr Chitekuteku*, for the first and second respondent respectively, submit that this matter should have proceeded by way of review not through a declarator. From their perspective, the applicant chose this route because the time of launching an

[10] [Chapter 10:28]. The point on the Administrative Act was not pleaded but came through the oral submissions.
[11] SC10/15
[12]HB91/26

application for review has lapsed and they have not sought condonation. The court has been persuaded by this argument.

Whether rightly or wrongly, the second respondent is statutorily empowered to make decisions. If a party is not happy with those decisions there is recourse whereby those decisions are challenged. [13] In terms of s4 of the Administrative Justice Act, an aggrieved part can approach the High Court if an administrative decision is not satisfactory or flouts s3 of its provisions. [14]

That recourse has been provided for through, sections 26 and 27 of the High Court Act[15]. Most importantly, s27 which stipulates grounds for review. In other words, instances upon which a matter can be brought for review. Of particular interest and pertinency is s27(1)(c) which is in two parts. The first part is that which speaks to gross procedural irregularity. The second one relates to gross irregularity in the decision of the court or administrative body.

It is evident that the second respondent as an administrative functionary made two decisions under scrutiny. The first, was on the issuance of two offer letters to two different individuals over the same piece of land. The second was in issuing the subsequent impugned withdrawal letter. What is under attack are not only the two highlighted decisions, but also the manner in which the letter of withdrawal was dispatched.

These are challenges on procedural and decisional irregularities of an administrative body. They fall squarely under s27(1) (c) of the High Court Act. They are subject to review.

In terms of section 14 of the High Court Act [Chapter 7:06], for an application for declaratory relief to succeed, there must be a right or obligation to be protected and validated. The right or obligation must be existing, future or contingent. When there is an interference of such right or obligation, then an applicant can seek the declaratory relief avenue.[16] In addition the right, must be real and not an abstract intellectual interest.[17] Further, the applicant must establish a real, direct and substantial interest in the subject matter of the

[13] Sections 3 and 4 of the Administrative Justice Act are apposite.
[14] Note 10 above
[15] [Chapter 7:06]
[16] Geldenhuys and Neethling v Beuthin 1918 AD at 426, 440-441
[17] Elephant College v Chiyangwa & Anor 2020(1) ZLR1287(S) page 1289 para 6

proceedings. Lastly, the court has a discretion to grant or deny the order.[18] *Newton Elliot Dongo* v *Joytindra Natverial Nack and 5 Ors SC 52/20*.

Further, in a declarator a court is being asked to declare that a certain state of affairs exists. It may also be used to determine whether actual or pending action is lawful or legal. It is a simple means of curing illegal activity. With a declarator the court gives a definitive and authoritative answer to the question as to the legal position of a particular given state of affairs.

Whilst, the applicant 's offer letter gives him a right though under challenge, it is in my view, a contingent right. A contingent right is one dependent upon the happening of some condition. In this case it is a right contingent upon the determination of all the second respondent's actions and decisions on review.

The determinant factor, however, is that, what is being impugned is the decision of the second respondent over that contingent right against the letter of withdrawal and its procedural aspects, a subject for the review court.[19] A declarator is not the appropriate action at this stage. Moreso, when s26 of the High Court peremptorily states that subject to the Act and any other law, the High Court shall have power, jurisdiction and authority to review <u>all</u> proceedings and decisions of <u>all</u> inferior courts of justice, tribunals and administrative authorities within Zimbabwe. (My emphasis).

Of note, the application was not strictly founded on the violations of the Administrative Justice Act. Part 6(c) of the applicant's relief sought in the draft order is the one which relates to violations of the said Act. Had it been the case, this court will not have withheld its jurisdiction, as per the dicta in the *Gwaradzimba* case (above) and *Telecontract (Private)Limited vs Postal and Telecommunications Regulatory Authority of Zimbabwe, Minister of Information, Communication, Technology, Postal and Courier Services and Minister of Transport, Communications and Infrastructure Development.* [20]

In the final analysis, in case HCCR56/26, I am convinced that the application for a declaration of rights is inappropriate. The applicant is challenging an administrative action. He ought to have proceeded by way of review. It is the review court that can set aside the

[18] Johnsen v AFC 1995(1) ZLR65(S)
[19] Herbstein &van Winsen, Civil Practice of the high Courts in South Africa, 5ed.
[20] SC71/17. These Supreme court decisions state that this court's jurisdiction cannot be withheld simply because of the review jurisdiction when a matter is brought in terms of the Administrative Justice Act.

administrative decision if gross irregularity is proved as per s27(c) of the High Court Act. From the record it is evident that the first respondent sought condonation of a 2016 matter in 2025. Nothing stops the applicant from exploring the same route.

Disposition

1. Resultantly, the first point in limine is upheld and is dispositive of this matter.
2. Administrative decisions unless challenged in terms of another law like the Administrative Justice Act, are subject to review.
3. A declaratory relief is not the appropriate course of action in this case.

Accordingly,
It is ordered that,

a. The application in case HCCC56/26 is struck off the roll.
b. No order as to costs.

Mugiya Law Chambers, *Brian Karoro's legal Practitioners*
Kingstone Corporate Attorneys Aleck Muthangu's legal practitioners
Civil Division of the Attorney General, 2nd respondent's legal practitioners